



SPONSOR: Rep. K. Johnson & Sen. Pinkney
Reps. Morrison, Neal, Gorman

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 223

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO INFORMATIONAL MATERIALS
CONCERNING MENSTRUAL DISORDERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Part II, Title 16 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

Chapter 30R. MENSTRUAL DISORDERS

§ 3001R. Menstrual disorders materials and information.

(a) The Department, in conjunction with the Department of Education, must develop or obtain from a reputable
organization written materials and information about menstrual disorders and their symptoms. The Department may publish
physical copies of the materials and information, and must make electronic copies of the materials and information
available on a website maintained by the Department or provide on such a website URLs, QR codes, or other electronic
links to the materials and information that may be available to reach the target audience.

(b) The materials and information developed or obtained under this section must be provided to school districts
upon request.

(c) Schools must post in any bathroom that may be used by a menstruating student and in student health centers a
poster containing the URL to the website maintained by the Department where information about menstrual disorders can
be found. Schools may also directly distribute the materials and information to students or provide students with flyers
containing URLs, QR codes, or other links to the materials and information to educate students about menstrual disorders
and their symptoms.

(d) The Department must review the materials, information, and any electronic links to materials or information at
least every 2 years to determine the effectiveness of the materials and information, ensure the materials and information are
up-to-date and accurate, and confirm the continued validity of electronic links to materials and information and links
contained therein.

(e) The materials under this section must include at least the following:

(1) The timing, signs, and symptoms of endometriosis and other menstrual disorders.

- (2) The importance of menstrual health and its potential impacts on an individual's physical, emotional, social, and academic life.
- (3) Basic statistics on endometriosis and other menstrual disorders.
- (4) Best practices for individuals to be their own healthcare advocates.
- (5) Basic treatment options for endometriosis and other menstrual disorders, as well as recommendations for follow-up care from a health care provider.

Section 2. This Act takes effect 120 days after its enactment into law.

SYNOPSIS

This Act requires the Department of Health and Social Services, in conjunction with the Department of Education, to develop or obtain informational materials concerning menstrual disorders to be provided upon request to school districts for purposes of educating students about menstrual disorders and their symptoms, and to ensure at least every 2 years the effectiveness of the information, that the information is up-to-date, and that any electronic links provided to access information and links contained therein are valid. The materials and information must be made available on a website maintained by the Department. Schools must, at a minimum, put posters containing the URL to the website maintained by the Department where the materials and information can be found, and may also distribute materials and information directly or provide students with flyers containing URLs, QR codes, or other links from which the students may access the information.